

Imran Sabir v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 1 October 2019 · Writ-C No. 31443 of 2019 · **Writ disposed of; petitioner relegated to clause 6.5 before the Executive Engineer; recovery to abide that decision.**

HEADNOTE

A writ challenging a recovery citation for electricity arrears, where the consumer disputes the correctness of subsequent inflated bills, is not decided on merits. The dispute as to correction of bills is to be raised before the Executive Engineer under clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005. The Court granted three weeks to raise the objection, directed a speaking order after hearing, and held that the recovery would abide that decision.

FACTUAL SUMMARY

Imran Sabir challenged a recovery citation dated 3 September 2019 demanding Rs. 6,66,599 as arrears of electricity dues. He said he had been paying monthly bills regularly, ordinarily about Rs. 3,000–4,000. After a bill of Rs. 3,664 dated 17 August 2018 and an Rs. 8,000 deposit, later bills were Rs. 1,460 and Rs. 2,627, but the demand then rose to Rs. 60,036 (dated in the order as 24 August 2018) and Rs. 2,54,208 on 11 January 2019, which he called patently illegal.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill correction before Executive Engineer

HOLDING

A dispute about correction of electricity bills, raised in a writ against a recovery citation for arrears, is to be taken to the Executive Engineer under clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005. The High Court will not decide the billing dispute on merits. If the consumer raises the dispute within the time allowed, the Executive Engineer must consider and decide it by a speaking order after hearing, and the recovery will abide that decision. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5

Challenge to inflated bills and the consequent recovery citation treated as a clause 6.5 correction dispute for the Executive Engineer; recovery to abide that decision. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILLS DATED 24.08.2018 AND 11.01.2019 AND RECOVERABILITY OF RS. 6,66,599

Left to the Executive Engineer under clause 6.5; the Court did not examine the bills on merits. ¶ 1